

UNIT 01

DIRTY HANDS

Welcome to PD9: Ethical Decision Making!

This downloadable version of Unit 01 contains edited content. To get the full experience of this course and all of its content (including additional interactive content and assignments), you are encouraged to engage with the course through LEARN.

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UNIT 01 OBJECTIVES

- Describe the key components of ethics and how they apply in your work and personal life
- Explain the impact of ethical and morally "grey area" decisions on yourself and those around you
- Deconstruct the concept of 'dirty hands' within the context of decision-making
- Be aware of and take appropriate steps for making effective ethical decisions

THE BIG IDEA

DIRTY HANDS

"Dirty hands" is the idea that when placed in a situation where you're forced to make a decision, you could be faced with negative consequences regardless of your choice. It's important to not take such situations lightly, as the consequences could affect yourself and others. This unit will guide you to recognize dirty hands situations, critically evaluate your options, and be accountable for your decisions.

INSTRUCTOR'S LECTURE

STIR THE POT

Imagine you're the lead organizer at a summer camp, and you're sorting through camper registrations. You've been tasked with accepting the first 50 registrants in the pile. Camp policy is to accept registrants on a first-come, first-serve basis, no exceptions. The policy is in place to prevent things like favouritism.

Registration number 50 is a complete stranger, but registration number 51 is a name you recognize – it's your cousin. Your aunt mentioned, and even begged, to you last week that she really needs your cousin to attend this camp. She made you promise that you would do everything in your power to get your cousin accepted. You made a promise, and you have the power to fulfill that promise, but you also have a duty to follow camp policies.

So what do you do? Ethically, you have to weigh job responsibilities against keeping your promise



Would you keep your promise, or would you follow camp policy?

- a) Keep promise
- b) Neutral
- c) Follow camp policy

Figure 1: PD9, Unit 01, Slide 4

IF IT'S NOT ILLEGAL... IT'S OKAY, RIGHT? THE METHOD OF COUNTER-EXAMPLE

'Well if it's not illegal, then then what's the problem?' On the face of things, this looks like a perfectly legitimate attitude; if an action is not forbidden by law, then it is permissible to do. Wherein lies the problem?

One of the problems with the 'if-it's-not-illegal-it's-okay' attitude is that it ignores the scope of ethics. It assumes that whatever the law covers is the end-all and be-all of ethical considerations; it assumes that the scope of ethics falls within the scope of the law. This simply is not the case. Some ethical considerations extend beyond the scope of the law. Think of it this way: the underlying logical form of the 'if-it's-not-illegal-it's-okay' attitude is this:

Premise: X is not illegal.

Conclusion: It's okay to do X.

What is X? It's a variable. You can replace it with any action you like. When you start thinking of concrete examples, you will quickly see that this form of reasoning can take us from a true premise to a false conclusion. In other words, this form of argument is formally invalid. Demonstrating that a form of argument can take us from true premises to a false conclusion is called **the method of counter example**. The goal is to think of a suitable substitution for X, which makes the premise true, but also makes the conclusion false. So, what is a suitable substitute for X?

Consider the following examples.

1. Premise: it is not illegal to dip your bare hands in highly concentrated sulfuric acid.
Conclusion: it is okay to dip your bare hands in highly concentrated sulfuric acid.

There is something clearly wrong with the conclusion. If your goal is to avoid nasty chemical burns, then it is not a good idea to dip your bare hands into a vat of sulfuric acid.

2. Premise: adultery is not illegal in Canada.
Conclusion: it is okay to commit adultery.

Depending on the type of relationship you are in, adultery might not be a good idea. If you've made a promise of fidelity (and believe it is important to keep such promises), then adultery is probably a poor choice... and certainly not okay.

**JUST BECAUSE SOMETHING IS NOT
ILLEGAL, IT DOES NOT FOLLOW
THAT IT IS OKAY TO DO.**

Don't lose sight of the big picture. Just because something is not illegal, it does not follow that it is okay to do. It is important to acknowledge that this is burdensome. Not only must we be knowledgeable of the law; we must also be mindful of ethical considerations. This adds a level of complexity to our decision making. Thinking through ethical issues takes a lot of work. It requires making nuanced distinctions. It means navigating complex issues on which everyone has deeply held opinions. This must not stop us from rising to the occasion and doing the hard work. Ethics matters.



Figure 1: PD9, Unit 01, Slide 5

CONCEPTIONS OF THE GOOD LIFE

ETHICAL DECISION-MAKING IS ABOUT PROVIDING REASONS FOR THE DECISIONS WE MAKE.

Everyone has a particular view of what it means to live a good life. Every person has an opinion about what is right and wrong. Every person has an opinion about what has value. Everyone has an opinion about how things should be. Everyone has a conception of the good life. I'm not here to tell you what the good life is, and I'm certainly not here to

tell you how to live your life. That is none of my business, and it is for you to work out on your own. Further, I'm not here to give you a list of best ethical practices or a list of dos and don'ts. I do not intend to instruct you in the ways of business etiquette. This is a course on ethical decision-making. I am assuming that you already have a particular conception of the good life. I assume you already have strong opinions about what is right and what is wrong; what is fair and what is unfair; and what is just and what is unjust. That is my starting point. The point of this course is to teach you how to make decisions in the workplace that are consistent with your deeply held ethical beliefs. The reason why I will not give you a list of dos and don'ts is for the simple reason that ethical decision making isn't simply about following rules; it isn't simply a matter of getting the algorithm right. Ethical decision-making is about providing reasons for the decisions we make.

MORAL FOCUS

What should our moral focus be on when making decisions? That depends on what ethical theory you subscribe to. There are many different ethical theories, and each theory focuses on a different principle. Some ethical theories focus on the quality of a person's character. Others focus on the consequences of one's actions. Some focus on moral duty, yet others focus on respecting the interests of others.

ARISTOTLE'S VIRTUE THEORY

Aristotle thought that our focus should be on a person's character. It is the quality of a person's character that has moral worth. When we praise someone, we are praising their character. When we assign blame, we are criticizing their character. Happiness, for Aristotle, is the only thing we pursue for its own sake. We don't pursue happiness for any other reason. We don't think happiness will help us achieve anything else. We pursue happiness for the sake of happiness. So how do we achieve happiness? According to Aristotle, we flourish by living a life of virtue. **Virtue** is the mean between two extremes: the extreme of deficiency and the extreme of excess.

VIRTUE IS THE MEAN BETWEEN TWO EXTREMES: THE EXTREME OF DEFICIENCY AND THE EXTREME OF EXCESS.

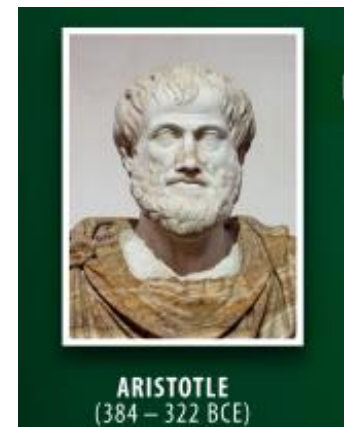


Figure 3: Jastrow. (2006). Marble bust of Aristotle, Roman copy after a Greek bronze original by Lysippos [Photo]. Retrieved from https://commons.wikimedia.org/wiki/File:Aristotle_Altemps_Inva8575.jpg

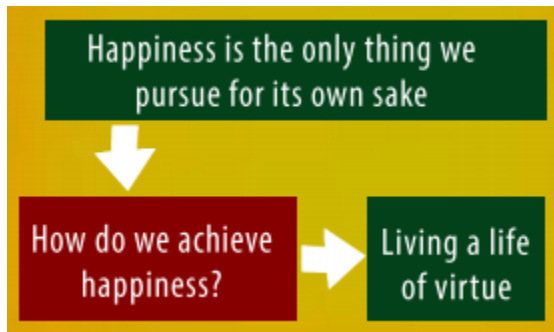


Figure 5: PD9, Unit 01, Slide 13

In practical terms, when it comes to the act of giving, generosity is a virtue. If you are a generous person, then you are acting with a virtuous character, and this is praiseworthy. If, however, you refuse to give of your time or resources, you have a stingy character. This, for Aristotle, was the extreme of deficiency. On the other hand, if you give your time and resources away without much thought, you're then being wasteful, according to Aristotle, which is the other extreme. Your goal, according to Aristotle, should be a life of balance.

Similarly, when seeking pleasure, the virtuous character is one that is temperate. It is not good to have an ascetic life; it is not good to deny oneself of all pleasure - that is too extreme. Yet, neither is it good to live a life of debauchery. Again, for Aristotle, the virtuous life is the balanced life. When it is a question of confidence, courage is a virtue. When faced with danger, the virtuous character will respond with courage. Cowardice is blameworthy, as is rashness — acting without regard to human life or safety. Again, balance is key. For Aristotle, we cannot achieve happiness if we do not live a life of virtue, a life of balance. Now you might be thinking to yourself, 'what about things like murder, theft, or adultery? How many murders do I have to commit to find the balance between the two extremes? What is the right amount of adultery?' Well, for Aristotle, not every action has a mean; some actions like murder, theft, and adultery are just plain wrong.

The important take-away is that, according to Aristotle, **when it comes to thinking about what the right thing to do is, we should focus on the character of the person.** Now let's apply this to a modern situation.

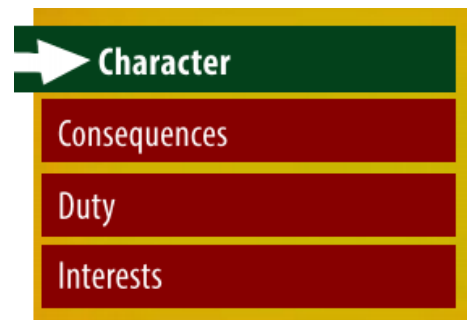


Figure 6: PD9, Unit 01, Slide 15



Figure 7: Tomlinson, K. (2013, April 6). RBC replaces Canadian staff with foreign workers. Retrieved July 13, 2017, from <http://www.cbc.ca/news/canada/british-columbia/rbc-replaces-canadian-staff-with-foreign-workers-1.1315008>)

In your opinion, do the people who made this decision have virtuous characters?

- a) Yes
- b) Neutral
- c) No

JOHN STUART MILL'S UTILITARIANISM

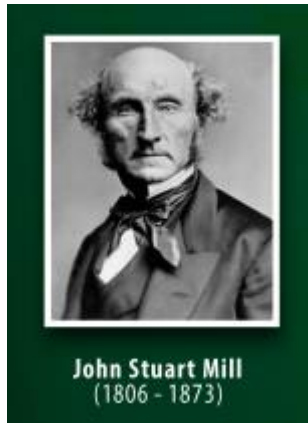


Figure 2: Unit 01, Slide 17
London Stereoscopic Company.
(Circa 1870). John Stuart Mill.
Retrieved from
https://commons.wikimedia.org/wiki/File:John_Stuart_Mill_by_London_Stereoscopic_Company,_c1870.jpg

John Stuart Mill's approach is different from Aristotle's. According to Mill, we should focus on the consequences of one's actions. Like Aristotle, Mill thought that happiness is the greatest good: it is the one thing that all humans seek for its own sake. Unlike Aristotle, however, Mill thought that we achieve happiness by pursuing pleasure and avoiding pain. It's important to understand that Mill isn't simply talking about the individual here. He's thinking about society as a whole. Mill exhorts us to do that which promotes happiness in society as a whole. For Mill, this is the criteria of morality.



Figure 3: PD9, Unit 01, Slide 17

To determine whether an action is the right thing to do, consider whether your actions promote happiness. If they do, they meet the demands of morality. Consider whether actions bring about pain and suffering. If they do, they are contrary to the demands of morality. Murder and theft are morally reprehensible because these types of actions detract from our pursuit of happiness. Giving to charity is morally desirable because giving of our time and resources increases the aggregate amount of happiness in society.



Figure 4: PD9, Unit 01, Slide 19

The important take-away is that, according to Mill, **we should focus on the consequences of our actions when we are thinking about what the right thing to do is.**



Do you think the action of the bank promotes happiness for society?

- a) Yes
- b) Neutral
- c) No

Figure 11: Tomlinson, K. (2013, April 6). RBC replaces Canadian staff with foreign workers. Retrieved July 13, 2017, from <http://www.cbc.ca/news/canada/british-columbia/rbc-replaces-canadian-staff-with-foreign-workers-1.1315008>

IMMANUEL KANT'S DEONTOLOGY

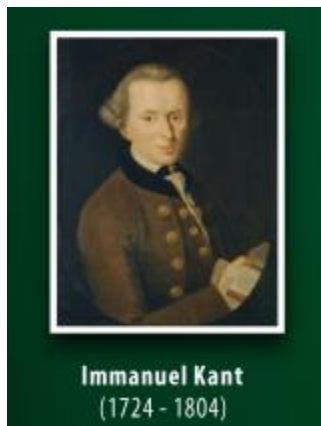


Figure 5: PD9, Unit 01, Slide 21
 Becker. (1768). Immanuel Kant.
 Retrieved from
https://commons.wikimedia.org/wiki/File:Kant_foto.jpg

Immanuel Kant took another approach: our focus, said Kant, should be on the actions and the motive for action. Kant argued that two conditions must be met for something to be deemed moral. For Kant, an act must be done in accordance with duty and for the sake of duty for it to be moral. If either of these conditions is not met, then the demands of morality have not been met.



Figure 6: PD9, Unit 01, Slide 21

So, what is our duty? Kant argued that our duty is to treat everyone as an end, not as a means. Now you might be thinking that this sounds a lot like the golden rule: *do unto others as you would have them do unto you*. That's not what Kant has in mind here. For Kant, morality comes from within. We don't need religion or the state to tell us what the right thing to do is. Kant argued that it is through reason that we come to grasp what morality demands of us. It is our duty to respect this autonomy in ourselves and others. We should treat everyone with the dignity they deserve, and give them the space they need to develop as rational, moral agents. This applies to everyone, equally. No one is exempt from the demands of morality. For Kant, if you use and abuse people and dispose of them when you're done with them, you're acting immorally.

Consider the following example: let's say that a grocer offers a fair price, but he only offers a fair price because he's in competition with other grocers. Is the grocer acting morally? Kant would say that offering a fair price is a good thing. It is wrong to take advantage of people. It is wrong to overcharge someone, even if you think you can get away with it. So charging a fair price is done in accordance with duty. However, Kant would say that the grocer acted for the wrong reasons. The grocer acted for selfish reasons. The grocer should ask a fair price, not because he has to do it if he wants to stay in business, but because asking a fair price is the right thing to do.

Here's a second example made famous by Kant: suppose you are at home one evening and hear a knock at your door. You open the door to find your breathless neighbor. They are being pursued by an armed madman and plead for you to hide them. You quickly oblige, and hide them in your basement. Soon after, you hear another knock at the door. You open the door and are confronted by an armed and very agitated man. He demands to know: "are you hiding your neighbour in your house?" What would you do?

Would you tell a lie or tell the truth?

- a) Tell a lie!
- b) Neutral
- c) Tell the truth!

The right thing to do, according to Kant, is to tell the truth. It is our duty to uphold the truth, regardless of the consequences. Even if the motivation for lying is admirable — and wanting to save your neighbour from an armed madman is certainly admirable — lying is wrong.



Figure 7: PD9, Unit 01, Slide 27

The take-away from Kant is this: **when it comes to thinking about what the right thing to do is, we should focus on the action and the motive.** We must act in accordance with duty, for the sake of duty.

What do you think, is this treating people as a means or as an end?

- a) Means
- b) End



Figure 15: Tomlinson, K. (2013, April 6). RBC replaces Canadian staff with foreign workers. Retrieved July 13, 2017, from <http://www.cbc.ca/news/canada/british-columbia/rbc-replaces-canadian-staff-with-foreign-workers-1.1315008>)

MORAL RIGHTS THEORISTS

Contrast the philosophy of Immanuel Kant with what moral rights theorists say. Moral rights theorists claim that our moral focus should be on the moral agents themselves. We should focus on protecting the interests of the moral agent. According to moral rights theories, every right has a corresponding duty. If I have a right - if I have a claim against you - then you have a duty. Either you have a duty to act in some way, or you have a duty to refrain from acting.



Figure 16: PD9 Infographic

The charter also grants us the right to life, liberty, and security of the person. Moral and Political rights are set up to protect the interests of a person. Each one of us has an interest in living a long, productive, and happy life. Each one of us has an interest in being safe and secure, and each one of us has an interest in remaining politically free. A system of moral rights protects those interests, and makes it possible for violators to be punished. For moral rights theorists, as long as the interests of the person have been preserved, the demands of morality and justice have been met.

The take-away from moral rights is this: when it comes to thinking about what the right thing to do is, we should focus on the interests of others and respect those interests.

What should we focus our moral deliberations on? We've looked at some of the answers that are typically given, but we haven't exhausted the range of possible answers to the question. There are many more answers out there; we just don't have the time to survey all the possibilities. Further, I've simply given you the abridged version. The complete answers — with reasons and arguments — are much more sophisticated and nuanced. Again, we just don't have the time to get into the nitty gritty details. It's important to appreciate that there are many different answers; that the answers are incredibly complex and aren't always compatible; and that everyone has an opinion in the matter. Each one of us

Consider the Canadian Charter of Rights and Freedoms as an example. Section two of the charter states that each person in Canada has the freedom of thought, belief, opinion, and expression. Each one of us has the right to believe whatever we want. We can even hold false beliefs. The state is burdened with the corresponding duty. The Government of Canada cannot tell us what to believe, and it cannot punish us for having false beliefs. Therefore, I can firmly believe that $7 + 5 = 14$, and I can even set up a newspaper whose sole purpose is to disseminate my belief that $7 + 5 = 14$. The government of Canada can't do anything about it.



Figure 17: PD9, Unit 01, Slide 32

has a conception of what it means to be good. Each one of us has an idea of what makes an action right or wrong, and we aren't always in agreement, hence the possibility of disagreement when it comes to making ethical decisions in the workplace.

DIRTY HANDS

Applying the ethical theories in real life isn't always easy to do. Though we rarely make explicit appeal to the ethical theories when we make decisions, they are there in the background. Again, each one of us has an idea of what makes an action right or wrong. Let's return to the opening scenario; the one where you are the lead organizer of a summer camp. You've made a promise to your aunt that you will do everything in your power to make sure your cousin gets into camp, but you are also bound by camp policies; one such policy states that applicants are accepted on a first-come, first-serve basis, no exceptions. The problem is, your cousin isn't one of the first 50 applicants, but they could be, if you switched their application with someone else's – no one would ever know. You have a choice between keeping your promise, and fulfilling your duties as an employee of the camp. So what should you do? No matter what your choice, you will end up with dirty hands.

DIRTY HANDS IS A SITUATION WHERE DOING THE ETHICALLY RIGHT THING COMES AT AN ETHICAL COST. SOMETIMES WHEN YOU DO THE RIGHT THING, YOU ALSO END UP DOING SOMETHING ETHICALLY WRONG.

Dirty hands is a situation where doing the ethically right thing comes at an ethical cost. Sometimes when you do the right thing, you also end up doing something ethically wrong. The scenario that we've been analyzing is an excellent example of dirty hands. Imagine you choose to keep your promise to your aunt. Keeping your promises is important. Keeping your promises is the ethical thing to do, but if you keep your promise to your aunt, you will have failed at fulfilling your duties as an employee of the camp. Alternatively, imagine you choose to fulfill your duties as an employee of the camp. Fulfilling your duties is what is required of you; your employer can rightly expect you to fulfill your duties. That is your job. However, if you fulfill your duties as an employee of the camp, you will have broken your promise to your aunt. No matter what, your choice of doing what is ethically required of you comes at an ethical cost: you have also done something that is unethical.

CONCLUDING THOUGHTS

The whole point of this course is to help you make better ethical decisions. Everyone has a good idea of what it means to live a good life, but we don't always agree. Remember, I am not here to tell you how to live your life, and I'm not here to tell you what values to hold. That is for you to work out on your own. However, once you have figured what you believe in and what you value, I'm here to show you how to make the right decisions, even if the decision leaves you with dirty hands. I'll show you how to make decisions that are consistent with your values and deeply held beliefs.

GOAL:
To help you make
better decisions.

Figure 18: PD9, Unit 01, Slide 37

WHAT'S THE POINT?

Dirty hands in the workplace are, in many cases, unavoidable. Very few of us deliberately set out to do the wrong thing, but yet, the choices that we make, ethical or not, may result in us doing the wrong thing. You can't just ignore dirty hands. You are on the proverbial hook for the moral cost of your actions. Dirty hands have to be dealt with.

When dealing with dirty hands, it is important to:

- Acknowledge when the choices that you make have a moral cost to them;
- Do whatever you can to mitigate the moral wrong done; and,
- Own the consequences of your choices.

ADDITIONAL RESOURCES

An article reporting the replacement of Canadian workers with foreign workers to improve efficiency: <http://www.cbc.ca/news/canada/british-columbia/rbc-replaces-canadian-staff-with-foreign-workers-1.1315008>. Consider whether the people who made this decision have virtuous characters.

Niccolo Machiavelli wrote about the concept of dirty hands over 500 years ago: <https://www.theatlantic.com/magazine/archive/2013/12/machiavelli-was-right/354672>

A 2011 study on utilitarianism revealed that the pursuit of happiness doesn't often result in personal happiness for those that seek it: <http://www.economist.com/node/21530078>